

		fractures in other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the existence of a defect and Defendant's notice of the defect. (Code Civ. Proc. § 2017.010; see Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 403-404 ["The trial court plainly had a reasonable basis for admitting evidence of the numerous failures occurring in 1965 models for the purpose of showing the nearly identical 1966 models to be similarly defective."]) Defendant shall serve a further response and produce responsive documents, limited in scope to January 1, 2001 to present. Defendant shall serve a further verified response within 30 days of this order. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).) <u>Plaintiff's Motion to Compel Further Responses to Requests for Production, Sets Two and Three</u> Plaintiffs' motion to compel a further response to RFPs Sets Two and Three, is GRANTED. Plaintiffs move to compel further responses to RFP Nos. 20-23, 26, 30, and 31-41 and DENIED as to RFPs 24 and 25. RFPs 20-23, 26, 30, and 31-41 seek documents regarding potential similar defects in other Kia models. As discussed above, Plaintiffs have shown that such discovery is reasonably calculated to lead to discovery of admissible evidence. Such discovery will allow the Court to make an informed decision as to whether defects in other models were substantially similar enough to be admissible at trial. Therefore, Defendant is ordered to serve further responses and produce documents in response to RFPs 20-23, 26, 30, and 31-41, limited in scope to January 1, 2001 to present. RFPs 24 and 25 seek documents related to Defendant's marketing of the 2017 Forte, the model purchased by Plaintiffs. These RFPs are vague and overbroad and Plaintiffs have not cited legal authority supporting such broad discovery as to Defendant's marketing materials. Therefore, the motion is denied as to RFPs 24 and 25 without prejudice to Plaintiffs' ability to conduct more narrowly tailored discovery on this issue. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).)
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